

## **Conclusion**

For the reasons analyzed above, **Defendants' Motion to Compel Arbitration is granted in part and denied in part.** The Court **denies arbitration of the first cause of action for elder abuse, fourth cause of action for resident's rights, and the sixth cause of action for wrongful death.** The Court **compels arbitration of the remaining causes of action to arbitration pursuant to the Arbitration Agreement.** The Court orders this matter to be **stayed in full, pending conclusion of the arbitration.**

**15. 9:00 AM CASE NUMBER: C25-02961**  
**CASE NAME: SANDRA PONDS VS. BRUCE ALLS**  
**\*HEARING ON MOTION IN RE: TO VACATE SISTER STATE JUDGMENT**  
**FILED BY: ALLS, BRUCE**  
**\*TENTATIVE RULING:\***

Defendant Bruce Alls's motion to vacate the sister state judgment is **granted**.

Sanda Ponds obtained a judgment against Bruce Alls for \$53,532.57 in Georgia on July 19, 2023. Ponds assigned her judgment to G.R. Isidro on June 4, 2025. Isidro filed an application for entry of judgment on a sister state judgment on October 10, 2025. This Court entered judgment against Alls on October 10, 2025. The notice of entry of judgment was served on Alls by mail on October 28, 2025.

Alls filed this motion to vacate the judgment on November 13, 2025. Alls's motion is based upon Code of Civil Procedure section 1710.40 and the fact that Alls had notified the Georgia court of his current address, but the court mailed hearing notices to an incorrect address.

The records provided by Alls show that he filed a response in *Ponds v. Alls* (in Georgia) on January 3, 2023. In this response he listed his address as being in Conyers, GA. The judgement states that Ponds appeared for the bench trial on July 18, 2023, and Alls did not appear. The judgment was sent to Alls at an address in Loganville, GA.

Isidro provided additional documents from the Georgia case that a summons was issued to Alls at the Loganville property and Alls's was served by delivering a copy to Alls's sister at the Loganville property on December 16, 2022. (Opposition ex. A and B.) Isidro provided a declaration stating that he has personal knowledge of the documents filed in the Georgia case. Although it is not clear how Isidro has personal knowledge of these documents, these documents appeared to have been filed in the Georgia case and there is no claim that they are false. Thus, the Court may take judicial notice of the summons and proof of service filed in the case. The Court also takes judicial notice of Alls's response and the judgment filed in the Georgia case.

Alls argues that the Georgia judgment was entered without proper notice or jurisdiction. He then argues that the Georgia court mailed hearing notices to an incorrect address, despite having the correct address on file.

A motion to vacate a sister state judgment must be filed within 30 days of notice of entry of the

order. Alls's motion was filed within this time limit.

Code of Civil Procedure section 1710.40 provides that "A judgment entered pursuant to this chapter may be vacated on any ground which would be a defense to an action in this state on the sister state judgment, including the ground that the amount of interest accrued on the sister state judgment and included in the judgment entered pursuant to this chapter is incorrect." (Code of Civil Procedure section 1710.40(a).)

The Law Revision Comments for section 1710.40 note that "common defenses to enforcement of a sister state judgment include the following: the judgment is not final and unconditional (where finality means that no further action by the court rendering the judgment is necessary to resolve the matter litigated); the judgment was obtained by extrinsic fraud; the judgment was rendered in excess of jurisdiction; the judgment is not enforceable in the state of rendition; the plaintiff is guilty of misconduct; the judgment has already been paid; suit on the judgment is barred by the statute of limitations in the state where enforcement is sought. See 5 B. Witkin, *California Procedure Enforcement of Judgment* §§ 194–195 at 3549–3550 (2d ed. 1971); Restatement (Second) of Conflict of Laws §§ 103–121 (1971)."

A violation of due process can be used as a ground to vacate a sister state judgment. "Due process requires that notice be 'reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections.' [Citations.] Further, '[t]he fundamental requirement of due process is the opportunity to be heard 'at a meaningful time and in a meaningful manner.'" [Citation.]" (*State of Arizona ex rel. Arizona Dept. of Revenue v. Yuen* (2009) 179 Cal.App.4th 169, 179; see also, *Commercial Nat. Bank of Peoria v. Kermeen* (1990) 225 Cal.App.3d 396; see also, *In re Marriage of Lippel* (1990) 51 Cal.3d 1160, 1166 [due process requires notice and an opportunity to defend].)

Here, Alls claims he was not given notice of the trial date and thus, trial occurred without him. This is similar to when a plaintiff obtains a default judgment. In California, when a plaintiff requests a default judgment, they must serve the request for entry of default on the defendant at their last known address. (Code of Civil Procedure section 587.) There is a due process issue when the request for entry of default is not properly served on the defendant, however, such an issue can be rebutted by showing defendant had actual notice of plaintiff's intent to enter default. (*Murray & Murray v. Raissi Real Estate Development, LLC* (2015) 233 Cal.App.4th 379, 383, 386.) Similarly, dismissing a plaintiff's complaint without notice and an opportunity to be heard is a violation of due process. (*Reid v. Balter* (1993) 14 Cal.App.4th 1186, 1193.)

In opposition (and the supplemental opposition), Isidro argues that Alls was required to update the court in Georgia regarding his change of address. *Tyliczka v. Chance* (2012) 313 Ga.App. 787 affirmed the dismissal of a case because plaintiff's lawyer did not attend a calendar call. The lawyer argued that she missed the court's notice. The law firm filed the case using their current address, but then moved and failed to request an address change with the court (although their later correspondence had a new address). The Court noted that "[e]ven when mail is to be forwarded, however, we note that a lawyer representing a party has a duty to 'notify the calendar clerk . . . immediately upon any change of . . .

address.’ Uniform Superior Court Rule 4.6.” (*Tyliczka v. Chance* (2012) 313 Ga.App. 787, 787, fn.1.) Although Isidro adds language indicating that Rule 4.6 applies to parties, the Rule 4.6 is specific to attorneys and it does not state that it applies to self-represented parties.

Service of pleadings after the original complaint is made “by delivering a copy to the person to be served or by mailing it to the person to be served at the person’s last known address...” (Ga. Code Ann. § 9-11-5.) In *Syed v. Merchant’s Square Office Bldgs., LLC* (2020) 354 Ga.App. 365 the court mailed notices to plaintiff’s law firm, but despite using the correct address, the law firm did not receive the notices and the case was dismissed. The court upheld the trial court’s denial of a motion to set aside the dismissal. The court decision was not based on the losing party’s knowledge, but on whether the trial court had properly discharged its duty of mailing the notice to the correct address. (*Id.* at 367.) In *Saxton v. Davis* (2003) 262 Ga.App. 72, 73 (overruled on another issue in *Ragan v. Mallow* (2012) 319 Ga.App. 443, 447), the court noted that due process was met when the papers were mailed to the opposing party’s last known address.

California has mailing requirements similar to those in Georgia. Although electronic service is often used (and required in many cases), when serving by mail, parties are to send documents to “the office address as last given by that person on any document filed in the cause and served on the party making service by mail; otherwise at that party’s place of residence.” (Code of Civil Procedure section 1013.) Parties are also required to provide notice when they change their address, or other contact information. (California Rules of Court, rule 2.200.)

The fundamental flaw with Isidro’s argument is that when Alls first appeared in the Georgia case he provided the court with his current (and thus last known) address in Conyers. The court apparently failed to input the correct address for Alls and thus, mailed documents to Alls at an *incorrect* address. This is not a situation where a party gave the court an address and then changed addresses during the pendency of the litigation. Nor is Alls arguing that the notice was sent to the correct address, but he did not receive it. Rather, the facts show that Alls gave the court his correct address at the first opportunity (his answer) and the court failed to use that address.

Here, the documents provided to the Court show that Ponds listed a Loganville address for Alls, which the Georgia court appeared to use throughout the case. Alls provided a different address in Conyers when he filed is response to Ponds’ complaint. Although neither side provides a copy of the notice setting the trial date, the documents available create a presumption that Ponds and the Georgia court were using an incorrect address for Alls, even though he provided the correct address. The Court finds that there was a violation of due process when the Georgia court held trial and then entered judgment without having provided sufficient notice to Alls of the trial date. Having found a violation of due process, the Court **grants** Alls’s motion to vacate the sister state judgment.

**16. 9:00 AM CASE NUMBER: MSC19-01228**

**CASE NAME: KENZIE CONSULTING VS CUNNINGHAM**

**\*HEARING ON MOTION IN RE: SET ASIDE JUDGMENT ENTERED AGAINST DEFENDANTS**

**FILED BY: CUNNINGHAM, HART PEARSON**

**\*TENTATIVE RULING:\***